

Sunil Jaiswal v. State of U.P.

Allahabad High Court · Division Bench · 8 August 2022 · WRIT - C No. - 22000 of 2022 · **Writ disposed; 6.8 objection liberty; coercive action stayed eight weeks**

HEADNOTE

Writ against a demand notice dated 31.8.2021 and recovery citation dated 5.4.2022 for Rs. 53,697 disposed of without opinion on merits. Liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if filed, to be decided after hearing within the next four weeks. Coercive action stayed for eight weeks or till disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The petitioner challenged a notice dated 31 August 2021 and a recovery citation dated 5 April 2022, issued by officers of the distribution licensee and the State, for alleged recovery of Rs. 53,697. The writ sought certiorari to quash those instruments and mandamus restraining coercive recovery. Counsel for the Power Distribution Corporation stated on instructions that the petitioner might file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to assessment — alternate remedy

HOLDING

Without expressing any opinion on merits, the writ against the demand notice and recovery citation was disposed of with liberty to the consumer to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if so submitted, respondent no.5 is to decide it in accordance with law within the next four weeks after reasonable opportunity of hearing. Coercive action on the impugned demand is stayed for eight weeks or till disposal of the objection, whichever is earlier. ¶ 3-5

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ against the demand notice and recovery citation was disposed of without a merits decision, with liberty to file a Para 6.8 objection. ¶ 4

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay If the Para 6.8 objection is filed within four weeks, it is to be decided after hearing within the next four weeks; coercive recovery is stayed for eight weeks or till disposal, whichever is earlier. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE IMPUGNED NOTICE DATED 31.8.2021 AND RECOVERY CITATION DATED 5.4.2022

Court expressly declined to express any opinion on merits. ¶ 4